

Short Title	Session and Chapter
County Courts Act, 1934	24 & 25 Geo. 5. c. 53.
Leasehold Property (Repairs) Act, 1938	1 & 2 Geo. 6. c. 34.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Crown Proceedings Act, 1947	10 & 11 Geo. 6. c. 44.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Railway and Canal Commission (Abolition) Act, 1949	12, 13 & 14 Geo. 6. c. 11.
Civil Aviation Act, 1949	12, 13 & 14 Geo. 6. c. 67.
Representation of the People Act, 1949	12, 13 & 14 Geo. 6. c. 68.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Landlord and Tenant Act, 1954	2 & 3 Eliz. 2. c. 56.
Requisitioned Houses and Housing (Amend- ment) Act, 1955	3 & 4 Eliz. 2. c. 24.
County Courts Act, 1955	4 & 5 Eliz. 2. c. 8.
Administration of Justice Act, 1956	4 & 5 Eliz. 2. c. 46.
Rent Act, 1957	5 & 6 Eliz. 2. c. 25.
Solicitors Act, 1957	5 & 6 Eliz. 2. c. 27.
Housing Act, 1957	5 & 6 Eliz. 2. c. 56.
Variation of Trusts Act, 1958	6 & 7 Eliz. 2. c. 53.

CHAPTER 23

Overseas Resources Development Act, 1959

ARRANGEMENT OF SECTIONS

The Colonial Development Corporation and its Functions

Section

1. The Colonial Development Corporation, and its purpose.
2. Powers of the Corporation.
3. Extension of powers of Corporation to additional enterprises.
4. Removal of doubts as to original purpose, and powers, of Corporation.
5. Special provisions as to the Federation of Rhodesia and Nyasaland.
6. Exercise of powers of Corporation where country or territory ceases to be a colonial territory.
7. Powers of Corporation as to Commonwealth countries which are not colonial territories.

Provisions as to Exercise of Corporation's Functions

8. Local interests to be consulted.
9. Interests of employees to be consulted.
10. Powers of the Secretary of State.
11. Disposal of capital assets.

Financial Provisions

12. Borrowing powers.
13. Advances, and guarantee of borrowings, by the Government of the United Kingdom.
14. Repayment of, and interest on, advances and sums issued to meet guarantees.

Section

15. Reserve fund.
16. Balancing of revenue account, and surplus revenue.
17. Accounts and audit.
18. Issues out of the Consolidated Fund.
19. Accounting for receipts of the Secretary of State.

□

Interpretation, Repeal, Savings and Short Title

20. Interpretation.
21. Repeal and savings.
22. Short title.

SCHEDULES:

- First Schedule—Provisions relating to the constitution, &c., of the Colonial Development Corporation.
 Second Schedule—Enactments repealed.

An Act to consolidate the Overseas Resources Development Acts, 1948 to 1958, other than the provisions thereof relating to the Overseas Food Corporation.

[25th March, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The Colonial Development Corporation and its Functions

The Colonial Development Corporation, and its purpose.

1.—(1) The body established by the Overseas Resources Development Act, 1948, by the name of the Colonial Development Corporation shall continue in existence by that name and for the purpose of assisting colonial territories, in accordance with the provisions of this Act, in the development of their economies.

(2) The Corporation shall consist of a chairman, a deputy chairman and such number of other members, not being less than four or more than ten, as the Secretary of State may from time to time determine.

(3) The chairman, the deputy chairman and the other members of the Corporation shall be appointed by the Secretary of State from amongst persons appearing to him to be qualified as having had experience of, and having shown capacity in, matters relating to primary production, industry or trade, finance, science, administration, organisation of workers or welfare; and in making such appointments the Secretary of State shall have particular regard to the need for securing that adequate experience of those matters obtained in colonial territories is at the disposal of the Corporation.

(4) The provisions of the First Schedule to this Act shall have effect with respect to the Corporation.

2.—(1) For the purpose for which it exists, the Corporation shall (subject to the following provisions of this section) have power either alone or in association with other bodies or persons, or as managing agent or otherwise on behalf of other bodies or persons,—

- (a) to investigate and formulate projects for the promotion or expansion in colonial territories of new or existing enterprises to which this section applies, and to carry out any such projects;
- (b) to carry on undertakings in colonial territories which appear to the Corporation to be needed for or in connection with the promotion or expansion in those territories of new or existing enterprises to which this section applies;
- (c) to carry on any activities incidental to a project falling within paragraph (a) of this subsection or to an undertaking falling within paragraph (b) thereof which appear to the Corporation to be requisite, advantageous or convenient for or in connection with that project or undertaking;
- (d) to assist other bodies or persons, either financially or in any other way, to perform any functions which the Corporation is empowered to perform by virtue of any of the foregoing paragraphs;
- (e) to establish or expand, or promote the establishment or expansion of, other bodies to carry on (either under the control or partial control of the Corporation or independently) any such functions as are mentioned in the last foregoing paragraph.

(2) This section applies to any enterprise falling within one or more of the following classes, that is to say,—

- (a) agricultural enterprises, including any enterprise concerned with the livestock industry, with horticulture, or with forestry;
- (b) enterprises concerned with fisheries, including any enterprise relating to the taking of marine mammals;
- (c) enterprises for the working or getting of minerals;
- (d) industrial enterprises;
- (e) enterprises for providing, maintaining or improving the supply of water, electricity or gas;
- (f) enterprises for providing, maintaining or improving transport facilities or transport services, or for providing, maintaining or improving telegraph or telephone

- services, including wireless services other than broadcasting, but not including broadcast relay services;
- (g) enterprises for the provision or improvement of houses or other dwellings;
 - (h) enterprises for the keeping of hotels;
 - (i) enterprises for processing, storing or marketing any products of one or more enterprises falling within any of the foregoing paragraphs;
 - (j) enterprises for the carrying out of building, engineering or other operations in, on, over or under land.
- (3) Notwithstanding anything in subsection (1) of this section the Corporation shall not have power, except—
- (a) in the course of carrying on an undertaking as a building or engineering contractor, or
 - (b) in connection with an enterprise falling within any of paragraphs (a) to (i) of the last foregoing subsection, to investigate, formulate or carry out any project for providing schools, colleges, hospitals, government offices, or other buildings or works for the public service, and shall not have power to give financial assistance to any other body or person for the investigation, formulation or carrying out of any such project, except in the course of the carrying on by that body or person of an undertaking as a building or engineering contractor, or in connection with an enterprise falling within any of the said paragraphs.
- (4) In relation to any project for promoting or expanding an enterprise falling within paragraph (f) of subsection (2) of this section, where the facilities or services in question are, or will be, for purposes of communication with a colonial territory, but are, or will be, located or carried on wholly or partly outside that territory, and—
- (a) those facilities or services are, or will be, wholly for communication between that colonial territory and one or more other colonial territories, or
 - (b) the project is approved by the Secretary of State for the purposes of this subsection,
- the provisions of subsection (1) of this section shall apply as those provisions would apply if the facilities or services were wholly within that colonial territory.
- (5) For the purposes of this section any such enterprise as is mentioned in paragraph (b) of subsection (2) of this section, which is carried on wholly or mainly from a base in a colonial territory, shall be deemed to be an enterprise in that territory.
- (6) In this section—
- (a) the expression “minerals” includes any substance in or under land of a kind ordinarily worked for removal by underground or by surface working;

- (b) the expression "transport" means transport by land, by water or by air, and references to transport facilities include roads, bridges, railways, waterways and other transport installations;
- (c) references to the giving of financial assistance are references to the giving of such assistance by the taking up of share or loan capital, or by grant, loan or otherwise;
- (d) any reference to bodies or persons includes a reference to government authorities.

3.—(1) If it appears to the Secretary of State to be expedient to add to the classes of enterprises specified in subsection (2) of the last foregoing section, the Secretary of State, with the consent of the Treasury, may by order direct that that subsection shall have effect with the addition of such one or more classes of enterprises as may be specified in the order.

Extension of powers of Corporation to additional enterprises.

(2) An order under this section may be revoked or varied by a subsequent order thereunder.

(3) The power to make orders under this section shall be exercisable by statutory instrument, and an instrument containing such an order shall be subject to annulment in pursuance of a resolution of either House of Parliament.

4.—(1) It shall be assumed that the Corporation existed from the time of its establishment for the purpose mentioned in subsection (1) of section one of this Act and that, for that purpose, it always had the powers which it has by virtue of section two of this Act.

Removal of doubts as to original purpose, and powers, of Corporation.

(2) Without prejudice to the foregoing subsection, any project, undertaking or activity in which the Corporation engaged, or agreed to engage, before the thirty-first day of December, nineteen hundred and fifty-five, and which was specified as such a project, undertaking or activity in a report of the Corporation made and laid before Parliament under subsection (2) of section nine of the Overseas Resources Development Act, 1948 (which is re-enacted in subsection (2) of section ten of this Act) in respect of any financial year of the Corporation ending not later than that day, shall be deemed to have been within the powers of the Corporation under the provisions re-enacted in the said section two, if apart from this subsection it would not have been within those powers, and, if not completed before the passing of this Act, may be carried out or carried on by the Corporation accordingly.

5.—(1) The provisions of this section shall have effect as to the powers of the Corporation in relation to the Federation of Rhodesia and Nyasaland (in this section referred to as "the Federation") and the territories comprised therein.

Special provisions as to the Federation of Rhodesia and Nyasaland.

(2) Any agreement made by the Corporation before the passing of the Overseas Resources Development Act, 1956 (that is to say, the second day of August, nineteen hundred and fifty-six), which would have been within its powers under the provisions re-enacted in section two of this Act if Southern Rhodesia had been a colonial territory, shall be deemed to have been within the said powers of the Corporation, if apart from this subsection it would not have been within those powers, and may be carried out by the Corporation accordingly.

(3) Without prejudice to the last foregoing subsection, where apart from this subsection a project or undertaking would be within the powers of the Corporation under section two of this Act if Southern Rhodesia were a colonial territory, the Secretary of State may authorise the Corporation to exercise those powers in relation to that project or undertaking as if Southern Rhodesia were a colonial territory:

Provided that the Secretary of State shall not give such an authorisation in the case of a project or undertaking unless—

(a) he is satisfied that the project or undertaking is needed for or in connection with the promotion, in a part of the Federation outside Southern Rhodesia, of new enterprises to which section two of this Act applies, or for or in connection with the expansion in such a part of the Federation of existing enterprises to which that section applies, and

(b) having regard to the purpose for which the Corporation exists, he is satisfied that it is expedient that it should be authorised so to exercise its powers in that case.

(4) Nothing in the last foregoing subsection shall be construed as affecting the exercise of any powers of the Corporation, in cases where those powers are to be exercised in relation to a part of the Federation outside Southern Rhodesia, but not in relation to any part of Southern Rhodesia.

Exercise of powers of Corporation where country or territory ceases to be a colonial territory.

6. Where a country or territory ceases or has ceased to be a colonial territory, that shall not affect the powers exercisable by the Corporation in or in relation to the country or territory for any purpose for which the approval of the Secretary of State had been obtained while it was a colonial territory, except that the Corporation shall not apply to any such purpose any capital sum in excess of the amount for which the approval of the Secretary of State had been so obtained and such further amounts, if any, as are shown to his satisfaction to be expedient:

Provided that where it appears to the Secretary of State to be expedient for the powers exercisable by the Corporation by virtue of this section in or in relation to any country or territory

to be enlarged by modifying or extending any such purpose as aforesaid, he may approve the modification or extension notwithstanding that the country or territory is no longer a colonial territory, and this section shall apply as if that approval had been obtained while it was a colonial territory.

7.—(1) The Corporation may undertake, in or in relation to any Commonwealth country which is not a colonial territory, or any territory administered by the government of such a country, to act as managing agent or perform advisory functions for any purpose for which it could do so in a colonial territory, and having undertaken to act as managing agent or perform advisory functions for any purpose in or in relation to any country or territory by virtue of this subsection the Corporation may exercise in that behalf the same powers as in the case of a colonial territory:

Provided that, except as may be agreed between the Corporation and the Secretary of State in relation to the performance of advisory functions,—

- (a) the Corporation shall not undertake under this subsection to act for any purpose in or in relation to any country or territory without the prior approval of the Secretary of State given by agreement with the government of that country or the government by which that territory is administered, as the case may be; and
- (b) the Corporation shall make for any services rendered by it in the exercise of the powers conferred by this subsection charges estimated to be not less than sufficient to defray any additional expense falling on it by reason of its rendering those services.

(2) The agreement required by proviso (a) to the foregoing subsection to approval of activities in or in relation to any part of a country which has a central government, but comprises separate provinces, states or other territories having their own government in addition to the central government, shall be agreement with the central government.

(3) The Secretary of State may direct the Corporation to cease any activity under subsection (1) of this section, and the Corporation shall comply with any such direction.

(4) The Secretary of State shall not make any agreement with the Corporation under subsection (1) of this section, or give any approval under subsection (1) or direction under subsection (3) of this section, except with the consent of the Treasury.

Provisions as to Exercise of Corporation's Functions

8.—(1) In determining its policy as to the activities to be carried on by it in any territory and the manner in which they are to be carried on, and as to assisting or participating in the

Local interests to be consulted.

carrying on by others of activities in any territory, the Corporation shall have particular regard to the interests of the inhabitants of the territory, and shall appoint committees charged with the duty of studying and keeping the Corporation informed as to the circumstances and requirements of the inhabitants in cases in which the appointment of such a committee appears to the Corporation to be needed for the proper discharge of the duty imposed on it by this subsection.

A committee appointed for the purposes of this subsection shall, unless it appears to the Corporation to be impracticable, include persons having knowledge of the circumstances and requirements of the inhabitants of the territory obtained by their being or having been themselves inhabitants thereof or residents therein.

(2) The Corporation shall not establish, or assist or participate in the establishment of, a new undertaking in any territory until such measures for consultation with the government of the territory as appear to the Secretary of State to be appropriate have been taken.

(3) This section shall not apply to any activity of the Corporation under section six or seven of this Act.

Interests of
employees to
be consulted.

9.—(1) The Corporation shall take all practicable steps to secure—

- (a) the safety, health and welfare of persons in its employment or in the employment of others in activities carried on with the assistance of the Corporation or in association with it; and
- (b) the benefit of practical knowledge and experience of such persons in the organisation and conduct of the activities in which they are employed.

(2) In the performance of its duty under the foregoing subsection, and in dealing with matters affecting terms or conditions of employment, the Corporation shall seek consultation—

- (a) with persons or bodies appearing to it to represent, or to have qualifications to speak on behalf of, substantial numbers of the employees affected;
- (b) where the matter in question arises in connection with the carrying on of activities in a colonial territory, with the government of the territory.

Powers of the
Secretary of
State.

10.—(1) The Secretary of State may, after consultation with the Corporation, give to it directions of a general character as to the exercise and performance of its functions in relation to matters appearing to him to concern the public interest, and the Corporation shall give effect to any such directions.

(2) The Corporation shall, as soon as possible after the end of each financial year of the Corporation, make a full report to the Secretary of State on the exercise and performance by it of its functions during that year, and he shall lay a copy thereof before each House of Parliament.

(3) The report for any year shall set out any direction given to the Corporation under subsection (1) of this section during that year, unless the Secretary of State has notified to the Corporation his opinion that it is against the interests of national security so to do.

(4) The Corporation shall furnish to the Secretary of State such information and returns relating to the property or activities or proposed activities of the Corporation or of others by whom activities are carried on or are proposed to be carried on with its assistance or in association with it (being information which is in the possession of the Corporation or can be obtained by it with reasonable facility or being returns giving such information) as the Secretary of State may from time to time require, and shall afford to him facilities for the verification of information furnished by it in such manner and at such times as he may require.

11. The power of the Secretary of State to give directions to the Corporation shall extend to the giving to it of directions— Disposal of capital assets.

(a) as to the disposal of capital assets, or

(b) as to the application of proceeds of such disposals,

notwithstanding that the directions may be of a specific character:

Provided that directions as to the application of proceeds of disposal shall be given by the Secretary of State with the approval of the Treasury.

Financial Provisions

12.—(1) Subject to the provisions of this section, the Corporation may borrow sums required by it for meeting any of its obligations or discharging any of its functions. Borrowing powers.

(2) The power of the Corporation to borrow shall be exercisable only with the approval of the Secretary of State, given with the consent of the Treasury, as to the amount (within the maximum specified in the next following subsection), as to the sources of the borrowing and as to the terms on which the borrowing may be effected.

An approval given in any respect for the purposes of this subsection may be either general or limited to a particular borrowing or otherwise, and may be either unconditional or subject to conditions.

(3) The Corporation shall not borrow so as to have outstanding at any time—

(a) in respect of sums borrowed temporarily, by way of overdraft or otherwise, an aggregate amount exceeding ten million pounds; or

(b) in respect of sums borrowed otherwise (whether by way of advance from the Secretary of State under the next following section or from other sources) an aggregate amount exceeding one hundred and fifty million pounds.

(4) A person lending money to the Corporation shall not be bound to inquire whether the borrowing of money is within the power of the Corporation.

Advances, and
guarantee of
borrowings,
by the
Government
of the United
Kingdom.

13.—(1) For the purpose of enabling the Corporation to defray expenditure properly chargeable to capital account, including provision of working capital, the Secretary of State may, with the consent of the Treasury, make advances to the Corporation up to amounts such that the aggregate outstanding at any time in respect of the advances shall not exceed one hundred and thirty million pounds.

(2) The Treasury may guarantee, in such manner and on such conditions as they may think fit, the repayment of the principal of, and the payment of interest and other charges on, any authorised borrowings of the Corporation made otherwise than by way of advance under the foregoing subsection.

(3) Immediately after any guarantee is given under this section, the Treasury shall lay a statement of the guarantee before each House of Parliament.

(4) Where any sum is issued for fulfilling such a guarantee, the Treasury shall, as soon as possible after the end of each financial year beginning with that in which the sum is issued and ending with that in which all liability in respect of the principal of the sum and in respect of interest thereon is finally discharged, lay before each House of Parliament a statement relating to that sum.

Repayment of,
and interest
on, advances
and sums
issued to meet
guarantees.

14.—(1) The Corporation shall make to the Secretary of State, at such times and in such manner as he may with the approval of the Treasury direct, payments of such amounts as he may so direct in or towards repayment of advances made to the Corporation under the last foregoing section, and of any sums issued in fulfilment of any guarantee given thereunder, and payments of interest on what is outstanding for the time being in respect of such advances and of any sums so issued at such rate as he may so direct, and different rates of interest may be directed as respects different advances or sums and as respects interest for different periods.

(2) The Secretary of State may, with the consent of the Treasury, remit the payment by the Corporation under the foregoing subsection of interest in respect of so much of any such advances as aforesaid as may be determined by him, with the approval of the Treasury, to be equivalent to net losses incurred for the purposes of an undertaking of the Corporation which was abandoned before the twenty-fifth day of November, nineteen hundred and fifty-four, or which was on or after that day, or may hereafter be, abandoned with his approval.

(3) The Secretary of State shall lay before each House of Parliament a statement of any payment due from the Corporation under subsection (1) of this section which is not duly paid to him as required thereunder.

15.—(1) The Corporation shall establish a reserve fund. Reserve fund.

(2) The management of the said fund, the sums to be carried from time to time to the credit thereof, and the application thereof, shall be as the Corporation may determine:

Provided that—

- (a) no part of the said fund shall be applied otherwise than for the purposes of the Corporation; and
- (b) the power of the Secretary of State to give directions to the Corporation shall extend to the giving to it, with the approval of the Treasury, of directions as to any matter relating to the establishment or management of the said fund, the carrying of sums to the credit thereof, or the application thereof, notwithstanding that the directions may be of a specific character.

16.—(1) It shall be the duty of the Corporation so to exercise and perform its functions as to secure that its revenues are not less than sufficient to meet all sums properly chargeable to its revenue account (including, without prejudice to the generality of that expression, provisions in respect of its obligations under the two last foregoing sections), taking one year with another. Balancing of revenue account, and surplus revenue.

(2) Any excess of the revenues of the Corporation for any financial year thereof over the sums properly chargeable to its revenue account for that year (including as aforesaid) shall be applied by the Corporation for such purposes as it may determine with the approval of the Secretary of State given with the consent of the Treasury.

17.—(1) The Corporation shall keep proper accounts and other records in relation thereto, and shall prepare in respect of each financial year of the Corporation a statement of accounts Accounts and audit.

in such form as the Secretary of State may with the approval of the Treasury direct, being a form which shall conform with the best commercial standards.

(2) The form of the accounts and of the statement shall be such as to secure the provision of separate information as respects each of the main activities of the Corporation.

(3) The accounts of the Corporation shall be audited by auditors to be appointed annually by the Secretary of State:

Provided that no person shall be qualified to be so appointed unless he is a member of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants;

The Institute of Chartered Accountants of Scotland;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland.

(4) So soon as the accounts of the Corporation for any financial year thereof have been audited, it shall send a copy of the statement of accounts prepared in respect of that year to the Secretary of State together with a copy of any report made by the auditors on the statement or on the accounts.

(5) The Secretary of State shall lay a copy of every such statement and report before each House of Parliament.

Issues out of
the Consoli-
dated Fund.

18.—(1) The Treasury may issue out of the Consolidated Fund of the United Kingdom (hereafter in this Act referred to as “the Consolidated Fund”) to the Secretary of State such sums as are necessary to enable him to make advances to the Corporation under this Act.

(2) Any sums required by the Treasury for fulfilling any guarantee under this Act of borrowings of the Corporation shall be charged on and issued out of the Consolidated Fund.

(3) For the purpose of providing sums, or any part of sums, to be issued under this section, or of providing for the replacement of all or any part of sums so issued, the Treasury may at any time, if they think fit, raise money in any manner in which they are authorised to raise money under the National Loans Act, 1939, and any securities created and issued to raise money under this subsection shall be deemed for all purposes to be created and issued under that Act.

Accounting
for receipts of
the Secretary
of State.

19.—(1) Sums received by the Secretary of State under section fourteen of this Act shall be paid into the Exchequer, and shall be issued out of the Consolidated Fund at such times as the Treasury may direct and be applied by the Treasury as follows, that is to say,—

- (a) so much thereof as represents principal shall be applied in redeeming or paying off debt of such description as the Treasury think fit;
- (b) so much thereof as represents interest shall be applied towards meeting such part of the annual charges for the National Debt as represents interest.

(2) The Secretary of State shall, as respects each financial year, prepare in such form and manner as the Treasury may direct an account of sums issued to him under subsection (1) of the last foregoing section and of sums received by him under section fourteen of this Act, and of the disposal by him of those sums respectively.

(3) Any account prepared under this section shall, on or before the thirtieth day of November next following the expiration of the financial year in question, be transmitted to the Comptroller and Auditor General who shall examine and certify the account and lay copies thereof, together with his report thereon, before each House of Parliament.

Interpretation, Repeal, Savings and Short Title

20. In this Act—

Interpretation.

- (a) the expression "colonial territory" means a territory to which section one of the Colonial Development and Welfare Act, 1940, applied at the commencement of the Overseas Resources Development Act, 1948 (that is to say, the eleventh day of February, nineteen hundred and forty-eight) except a country or territory which since that date and before the passing of this Act has become, or which after the passing of this Act becomes, an independent sovereign country, or which for the time being forms part of an independent sovereign country or is administered by the government of any such country outside the United Kingdom; and
- (b) the expression "the Corporation" means the Colonial Development Corporation.

21.—(1) The enactments mentioned in the first and second columns of the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule. **Repeal and savings.**

(2) In so far as any order, regulations, appointment or advance made, approval, consent, direction or guarantee given, requirement imposed, or other thing done, under an enactment repealed by this Act could have been made, given, imposed or done under a corresponding provision of this Act, it shall not be invalidated by the repeal effected by the foregoing subsection but shall have effect as if it had been made, given, imposed or done under that corresponding provision.

(3) Any document referring to an Act or enactment repealed by this Act shall (so far as may be necessary to preserve the effect thereof) be construed as referring or as including a reference to this Act or the corresponding enactment therein.

(4) The mention of particular matters in this section shall be without prejudice to the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

Short title.

22. This Act may be cited as the Overseas Resources Development Act, 1959.

SCHEDULES

Section 1.

FIRST SCHEDULE

PROVISIONS RELATING TO THE CONSTITUTION, &C., OF THE COLONIAL DEVELOPMENT CORPORATION

1. The Corporation shall be a body corporate with perpetual succession and a common seal and power to hold land without licence in mortmain.

2.—(1) The Secretary of State shall have power, exercisable by statutory instrument, to make regulations with respect to—

- (a) the appointment of the members of the Corporation, and their tenure and vacation of office;
- (b) the execution of instruments and the mode of entering into contracts by and on behalf of the Corporation, and the proof of documents purporting to be executed, issued or signed by the Corporation or a member or officer thereof;

and, subject to the provisions of any such regulations as aforesaid, the Corporation shall have power to regulate its own procedure (including the manner in which matters subject to the determination of the Corporation are to be determined by or on behalf of the Corporation).

(2) Regulations made under this paragraph shall be subject to annulment in pursuance of a resolution of either House of Parliament.

3. The validity of any proceeding of the Corporation shall not be affected by any vacancy amongst the members thereof, or by any defect in the appointment of a member thereof. 1

1ST SCH.
—cont.**4. The Corporation shall—**

- (a) pay to each member of the Corporation, in respect of his office as such, such remuneration and allowances as may be determined by the Secretary of State with the consent of the Treasury, and to the chairman and to the deputy chairman, in respect of his office as such, such remuneration and allowances (in addition to any remuneration or allowances to which he may be entitled in respect of his office as a member) as may be so determined; and
- (b) as regards any member in whose case it may be determined by the Secretary of State with the consent of the Treasury to make provision for the payment on his death or retirement of a pension, gratuity, or other like benefit, pay, or provide for the payment of, such pension, gratuity or other like benefit to him or to others by reference to his service as may be so determined.

5. If any member of the Corporation, other than the chairman or the deputy chairman, is employed about the affairs of the Corporation otherwise than as a member thereof, the Corporation may pay to that member such remuneration and allowances (in addition to any remuneration or allowances to which he may be entitled in respect of his office as a member) as the Corporation may determine.

6. The Corporation shall—

- (a) pay to its officers, servants and agents such remuneration as the Corporation may determine; and
- (b) as regards any officers, servants or agents in whose case it may be determined by the Corporation with the approval of the Secretary of State to make provision for the payment on their death, injury or retirement of pensions, gratuities or other like benefits, pay, or provide for the payment of, such pensions, gratuities or other like benefits to them or to others by reference to their service as may be so determined.

7. Provision for pensions, gratuities or other like benefits under this Schedule may be made either by contributory or by non-contributory arrangements or partly by the one and partly by the other.

8. The Corporation shall have power to do any thing and to enter into any transaction (whether or not involving expenditure, borrowing in accordance with the provisions of this Act in that behalf, lending or investment of money, the acquisition of any property or rights, or, subject to the provisions of section eleven of this Act, the disposal of any property or rights) which is incidental or conducive to the exercise of its powers under this Act.

9. It is hereby declared that nothing in this Act exempts the Corporation from liability for any tax, duty, rate, levy or other charge whatsoever, whether general or local.

Section 21.

SECOND SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 6. c. 15.	The Overseas Resources Development Act, 1948.	The whole Act.
12 & 13 Geo. 6. c. 65.	The Overseas Resources Development Act, 1949.	The whole Act.
14 & 15 Geo. 6. c. 20.	The Overseas Resources Development Act, 1951.	The whole Act.
2 & 3 Eliz. 2. c. 71.	The Overseas Resources Development Act, 1954.	Section five.
4 & 5 Eliz. 2. c. 71.	The Overseas Resources Development Act, 1956.	The whole Act.
6 & 7 Eliz. 2. c. 15.	The Overseas Resources Development Act, 1958.	The whole Act.

— ∞ —

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
National Loans Act, 1939	2 & 3 Geo. 6. c. 117.
Colonial Development and Welfare Act, 1940 ...	3 & 4 Geo. 6. c. 40.
Overseas Resources Development Act, 1948 ...	11 & 12 Geo. 6. c. 15.
Overseas Resources Development Act, 1956 ...	4 & 5 Eliz. 2. c. 71.

~~~~~

## CHAPTER 24

*Building (Scotland) Act, 1959*

## ARRANGEMENT OF SECTIONS

## PART I

## BUILDINGS AUTHORITIES

## Section

1. Constitution of buildings authorities.
2. General provisions relating to buildings authorities.

## PART II

## BUILDING STANDARDS AND BUILDING OPERATIONS

3. Building standards regulations.
4. Relaxation of building standards regulations in particular cases.
5. Building operations regulations.
6. Application of building standards regulations and building operations regulations to construction or demolition, and to change of use, of buildings.